

Amendment No. 1 to HB0604

Crawford
Signature of Sponsor

AMEND Senate Bill No. 622

House Bill No. 604*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 55-10-120, is amended by adding the following as a new subsection:

(d)

(1) A law enforcement agency shall provide records related to an accident, the persons involved in such accident, and persons involved in providing or selling alcoholic beverages to persons involved in an accident upon receipt of a request for such records by the alcoholic beverage commission.

(2) Notwithstanding another law to the contrary, the alcoholic beverage commission shall keep the records received pursuant to subdivision (d)(1) confidential and shall not provide such records to the public.

(3) Records described in subdivision (d)(1) that are used in a regulatory hearing must be protected from disclosure to any person other than the court and the parties involved in such regulatory hearing.

(4) The alcoholic beverage commission shall deny a request for records described in subdivision (d)(1) and inform the requestor of their ability to file a similar request with the law enforcement agency that created the record.

SECTION 2. Tennessee Code Annotated, Section 57-3-104(c)(3), is amended by deleting the subdivision and substituting instead:

(3) Investigate a violation, whether criminal or regulatory in nature, of this title; a violation of this title in relation to a motor vehicle accident involving alcoholic beverages;

or any other matter in which the commission has criminal or regulatory jurisdiction. As a part of any such investigation, the commission may summon or subpoena witnesses, information, or documentation relevant to such investigation, including requesting records pursuant to § 55-10-120(d);

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.